The Tamil Nadu Agricultural Lands Record of Tenancy Rights Rules, 1969

TAMILNADU
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The Tamil Nadu Agricultural Lands Record of Tenancy Rights Rules, 1969Published vide Notifications No. G.O. MS. NO. (3D) 22, Revenue, dated 7th December 1969, Published in Part 5 of the Fort St. George Gazette Extraordinary, dated 19th December 1969 - S.R.O. No. A. 945 of 1969In exercise of the pouters conferred by section 18 of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Act, 1969 (Tamil Nadu Act X of 1969), the Governor of Tamil Nadu hereby makes the following rules:-

1. Short title.

- These rules may be called the Tamil Nadu Agricultural Lands Record of Tenancy Rights Rules, 1969.

2. Definitions.

- In these rules,-(i)"Act" means the Tamil Nadu Agricultural Lands Record of Tenancy Rights Act, 1969 (Tamil Nadu Act X of 1969);[(i-a) "appellate authority" means- [Clause (i-a) was inserted by G.O.MS. No.2136, Revenue, dated the 16th September 1978.](a)the Revenue Divisional Officer; or(b)any other officer not below the rank of a Deputy Collector, specified by the Government by notification under section 6 of the Act.](ii)"authorised agent" means-(a)a person holding a power of attorney authorising him to act on behalf of his principal; or(b)an agent empowered by written authority under the land of his principal;(iii)"form" means a form appended to these rules;(iv)"section" means a section of the Act.(v)["Committee" means the Advisory Committee constituted under section 5-A of the Act.] [Clause (v) was added by G.O. Ms. No. 187, Revenue, dated the 2nd February 1983.]

3. Procedure for preparation of record of tenancy rights.

- Every record of tenancy rights referred to in section 3 shall be prepared in Form I.

4. Issue and publication of notice under section 3(3)(a).

(1)The notice referred to in clause (a) of sub-section (3) of section 3 shall be in Form II and shall be published in the following manner, namely:-(a)by affixture in the village chavadi or other public place in the village;(b)by affixture on the notice board of the village or town panchayat;(c)by affixture on the notice board of the Office of the Record Officer;(d)by beat of tom tom in the village; and(e)by publication in important local dailies for two days alternatively.(2)[A copy of the notice under sub-rule (1) shall be furnished to all the members of the Committee.] [Sub-rule (2) renumbered as sub-rule (3) and sub-rule (2) inserted by G. O. Ms. No. 387, Revenue, dated the 2nd February 1983.](3)[] [Sub-rule (2) renumbered as sub-rule (3) and sub-rule (2) inserted by G. O. Ms. No. 387, Revenue, dated the 2nd February 1983.] Land-owners, intermediaries, tenants and other persons having interest in the land shall send intimation to the Record Officer in Form III regarding the interests held by them within one month from the date of publication of the notice under sub-rule (1):Provided that the Record Officer may accept an intimation received after the expiry of one month, if he is satisfied that the party had just and sufficient cause for not sending it within that period.(4)[The Committee shall furnish the information and particulars or make its recommendation under section 5-A for the purpose of section 3, in form III-A.] [Sub-rule (4) added by G.O. Ms. No. 187, Revenue, dated the 2nd February 1983.]

5. Enquiry under section 3(4).

(1)As soon as may be after the expiry of the period mentioned in the notice in Form II, the Record Officer shall cause necessary verification to be made with reference to the village records and by such local enquiries as may be considered necessary. On getting the required information and after due verification, the Record Officer shall fix date for enquiry and give notice thereof to the villagers.(2)The notice referred to in sub-rule (1) shall be published in the following manner, namely -(i)by affixture in the village chavadi or other public place in the village;(ii)by affixture on the notice board of the village or town panchayat;(iii)by affixture on the notice board of the Office of Record Officer; and(iv)by beat of tom tom in the village;(3)In the case of persons who have already sent intimation in writing to the Record officer in Form III the notice under sub-rule (1) shall also be served on all such persons.(4)On the date fixed for the enquiry, the Record Officer shall hold an open enquiry in a public place in the village and in such enquiry reasonable opportunity shall be given to the parties concerned to make their re-presentations either orally or in writing. Where evidence is tendered orally, it shall be recorded in writing by the Record Officer and got signed by the deponent.

6. Publication of draft record.

- The draft record of tenancy rights prepared under sub-section (4) of section 3 shall, besides being

published in the District Gazette of the district in which the village is situated be published in the following manner, namely -(a)by affixture in the village chavadi or other public place in the village;(b)by affixture on the notice board of the village or town panchayat; and(c)by affixture on the notice board of the Office of the Record Officer.

7. Application for rectification or inclusion in draft record under section 3(6).

- An application under sub-section (6) of section 3, for rectification of entries in the draft record or for inclusion of particulars in it shall be in Form IV and shall be filed before the Record Officer within sixty days from the dale of publication of the draft record in the District Gazette concerned in the case or persons on whom an extract of the record has not been served and within thirty days from date of service in the case of persons on whom the extract of the record has been served:Provided that the Record Officer may admit an application presented after the expiry of the period mentioned in this rule, if he is satisfied that the party had just and sufficient cause for not presenting it within the said period.

8. Procedure to be followed in enquiries under section 3(8).

- On receipt or an application under sub-section (6) of section 3, the Record Officer, shall fix a date for hearing and give notice thereof to the applicant and all other persons having an interest in the lands mentioned in the application. On the date of the hearing, the Record Officer shall give a reasonable opportunity to the persons concerned to make their representations either orally or in writing. Where evidence is given orally, it should be reduced to writing by the Record Officer and got signed by the deponent.

9. Publication of the approved record.

- The approved record of tenancy right shall, besides being published in the Fort St. George Gazette and the District Gazette be published in the following manner namely:-(a)by affixture in the village chavadi or other public place in the village;(b)by affixture on the notice board of the village or town panchayat; and(c)by affixture on the notice board of the Office of the Record Officer;

10. Application under section 4(2) or section 5(2) for making changes in approved record.

- An application under sub-section (2) of section 4 or under sub-section (2) of section 5 for the purpose mentioned therein shall be in Form V and shall be filed in the office of the Record Officer.

10A. [Furnishing of information and particulars ad making recommendations by the Committee. [Rule 10-A inserted by GO. Ms. No. 187, Revenue, dated the 2nd February 1983.]

- The Committee shall furnish the information and particulars or make its recommendations under section 5-A for the purpose of section 4,4-A or 5, in the Form III-A.]

11. Procedure to be followed in disposing of applications under section 4(3) and 5(3).

- On receipt of an application under sub-section (1) of section 4 or sub-section (1) of section 5, the Record Officer shall fix a date for hearing and give notice thereof to the applicant and all other persons having interest in the lands mentioned in the application. On the date of hearing, the Record Officer shall give a reasonable opportunity to the parties concerned to make their representations either orally or in writing. Where evidence is given orally, it shall be reduced to writing and got signed by the deponent.

11A. [Procedure to be followed in an enquiry under section 4-A. [Rule 11-A inserted by G.O. Ms. No. 1866, Revenue, dated the 11th April 1973.]

- Before conducting an enquiry under section 4-A, the record officer shall fix a date for the hearing and give notice thereof to the land-owner, intermediary or tenant having interest in such land. On the date of the hearing the persons concerned may make their representations to the record officer either orally or in writing where evidence is given orally, it shall be reduced to writing by the record officer and signed by the deponent.]

12. Appeals against orders under section 3(8), 4(3) or 5(3).

(1)Every appeal against an order of the Record Officer under sub-section (8) of section 3, sub-section (3) of section 4 or sub-section (3) of section 5 shall he preferred to the appellate authority within sixty days from the date of receipt of the order.(2)The appellate authority may admit an appeal presented after the expiration of the period mentioned in sub-rule (1), if it is satisfied that the party had just and sufficient cause for not presenting it within the said period.

13. Revision application under section 7.

(1)An application under section 7 to [the District Collector or such officer as may be specified by the Government] [Inserted by G.O. Ms. No. 187, Revenue, dated the 2nd February 1983.] in this behalf for revision of an order passed by the Record Officer or the appellate authority shall be filed within ninety days from the date of receipt of the order.(2)The District Collector [or the said officer] [Substituted by GO. Ms. No. 1866 Revenue, dated the 11th April 1973.] may admit application for revision presented after the expiration of the period mentioned in sub-rule (1), if he is satisfied that the party had just and sufficient cause for not presenting it within the said period.

14. Inspection and grant of copies or extracts.

(1)The approved record of tenancy rights shall be made available for inspection in the office of the Record Officer, during office hours on any working day, in the presence of a responsible officer of that office, on payment of a fee of Rs. 1 per application in the shape of Court-fee stamps to be affixed on the application for such inspection.(2)Certified copies or extracts of the record shall also be granted within a week, on application to the Record Officer, on production of copy stamp papers to the required extent.(3)[Copies of the approved record of tenancy rights shall on application be supplied free of cost to co-operative societies having jurisdiction over the village and the members of the Advisory Committee constituted under the act having jurisdiction over the village.] [Sub-rule (3) was substituted by GO. Ms. No. 875, Revenue, dated the 12th June 1987.]

15. Court-fees.

- The Court-fee payable on application mentioned in column (2) of the table below shall be the amount specified in the corresponding entry in column (3) thereof.

SI. No.	Description of application	Court-fee (Rs.)
(1)	(2)	(3)
1.	Written intimation under section 3 (3) (a)	Nil
2.	Application under section 3(6) for rectification of any entryor for inclusion of particulars	1.00
3.	Application under section 4(1)(a) for inclusion of particulars	1.00
4.	Application under section 4(1)(b) for inclusion of particulars	1.00
5.	Application Wider section 5(1) for modification of entries	1.00
6.	Appeal petition under section 6	2.00
7.	Revision petition under section 7	2.00
8.	Application or petition not otherwise provided for	1.00

16. Manner of service of notice, decision or order under the Act or Rules.

- Any notice, copy of [decision] [Substituted for 'decree' by G.O. Ms. No.206, Revenue, dated the 24th January 1972.] or order issued or made under the Act or under these rules shall be served on the person concerned in the following manner, namely:-(a)by delivering or tendering the notice, copy of [decision] [Substituted for 'decree' by G.O. Ms. No.206, Revenue, dated the 24th January 1972.] or order to the person concerned or his counsel or authorized agent; or(b)by delivering or tendering the notice, copy of [decision] [Substituted for 'decree' by G.O. Ms. No.206, Revenue, dated the 24th January 1972.] or order to some adult member of the family or secretly, Director or Principal Officer of the Company. Firm or Association; or(c)by sending the notice, copy of [decision] [Substituted for 'decree' by G.O. Ms. No.206, Revenue, dated the 24th January 1972.] or order to the person concerned by registered post with acknowledgment; or(d)if none of the aforesaid modes of service is practicable by affixing the notice, copy of [decision] [Substituted for 'decree' by G.O. Ms.

No.206, Revenue, dated the 24th January 1972.] or order in some conspicuous part of the last known place of residence or business of the person, Company, Firm, or Association concerned.

17. Manner of communication of decision or order to parties.

- Every decision or order of any authority or officer in any proceeding against which an appeal or revision is provided for by the Act shall be served in the manner specified in rule 16.

18. Authorised agent to plead on behalf of parties.

- In any proceedings under the Act before the Record Officer, the Appellate Authority or the Revisional Authority, any authorised agent may be permitted to plead on behalf of any party:Provided that the authority may for reasons to be recorded in writing at any stage of the proceedings, cancel such permission.

19. [Process fees. [Added by G.O. Ms. No. 865, Revenue, dated the 12th May 1983.]

- The Record Officer, the appellate authority, the District Collector or such officer, as may be specified for the purpose of section 7 may collect process fees at the following rate namely :For fresh summons or notice for each defendant, respondent or witness Rs. 3.50]

20. [] [Renumbered by G O. Ms. No. 368, Revenue, dated the 13th March 1985.]

The committee constituted under section 5-A shall be treated as a Second Class Commissioner for the purpose of sanction of Traveling Allowance/ Dearness Allowances at the rates specified in ruling (7)(a) in part III or the Tamil Nadu Manual of Special pay and Allowances.Form I[See rule 3 of the Tamil Nadu Agricultural Land Record of Tenancy Rights Rules, 1969]Form of Record of Tenancy Rights for ..... District Village Taluk .....

SI. No.	Survey Number or sub-division number or paimashnumber	Local name of the land, if any	Extent	Classification Wet or Dry	Name and address of landowner
(1)	(2)	(3)	(4) A.c.	(5)	(6)

Name and address of intermediary, if any	Extent held by the intermediary in column (7)	Name and address of the tenant cultivating	Extent cultivated by tenant in column (9)	Extent under personal cultivation of thelandowner	Remarks

		theland			
(7)	(8)	(9)	(10)	(11)	(12)
			A.c.		

Notes. - (1) If there are more than one person owning the land shown in columns (2) to (4), the name of all the owners should be noted one below the other with the extent owned by each in brackets.(2)Against each such owner, the names of intermediaries or tenants, as the case may be, should be noted one below the other in columns (7) to (10), thus accounting for the extent owned by each person.(3)If a portion of the land owned by a person is under personal cultivation the extent should be noted in column (11).Form II[See rule 4(1) of the Tamil Nadu Agricultural Lands Record of Tenancy Rules, 1969]Form of Notice Under Section 3(3)(A) of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Act, 1969Notice is hereby given that a record of tenancy rights under section 3 of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Act, 1969 (Tamil Nadu Act X of 1969), is to be prepared for ..... village ..... taluk ..... district and that all land-owners, intermediaries, tenants and other persons having interest in every land in the said village, which has been let for cultivation, shall send an intimation in Form 1II to the Record Officer regarding the nature of his interest in such land within one month from the date of publication of this notice.

Station : Record Officer.

Date :

Form III[See rule 4(2) of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Rules, 1969]Form of Intimation to be Sent to Record Officer under rule 4(2)

1. Name and address of the person sending the intimation.

2. Particulars of land in which he is interested.

(a)District.(b)Taluk.(c)Village.(d)Survey number and sub-division number.(e)Local name of the land, it any.(f)Extent.(g)Classification (wet or dry).

3. [Nature of interest in the land that has been leased out for cultivation (i.e.) whether as owner, intermediary or tenant.] [Substituted by G.O. Ms. No.1221 Revenue, dated the 24th April 1971.]

4. If held as owner-

(a)the name and address of the intermediary; if any;(b)the name and address of the tenant; and(c)the extent leased out.

5. If held as intermediary-

(a)Name and address of the owner.(b)Name and address of the tenant to whom the land is leased and the extent leased.

6. If held as tenant-

(a)Name and address of the owner.(b)Name and address of intermediary, if any.(c)Name an address of the tenant and the extent held

7. Details of the documents relied on.

[Form III-A] [Added by GO. Ms. No. 187, Revenue, dated the 12th June 1987.][See rule 4(4) and 10-A of the Tamil Nadu Agricultural lands Record of Tenancy Rights Rules, 1969]Form for Furnishing Information and Particulars and Making Recommendations by the Committee

1. Name and address of the person in respect of whom entries arc required to be made or modified.

2. Particulars of land.

(a)District.(b)Taluk.(c)Village.(d)S.No. and Sub-division No.(e)Local name of the land, if any.(f)Extent.(g)Classification (wet, dry, manavari, etc.).

3. Nature of interest in the land required to above.

4. If held as owner-

(a)the name and address of the intermediary, if any.(b)the name and address of the tenant, and.(c)the extent leased out.

5. If held as intermediary-

(a)Name and address of the owner.(b)Name and address of the tenant to whom the land is leased and the extent leased.

6. If held as tenant-

(a)Name and address of the owner.(b)Name and address of the intermediary.(c)Name an address of the tenant and the extent held.

7. Details of particulars to be included or modification of entries to be made in the approved record of tenancy rights.

8. Circumstances under which the inclusion or modification is required.

9. Details of evidence for the above particulars/ information.

10. Other recommendation, if any.

Station : Advisory Committee.

Date :

Form IV[See rule 7 of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Rules, 1969]Form of Application for Rectification of Entries or Inclusion of Particulars in Draft Record

1. Name and address of the applicant.

2. Particulars of land in which he is interested.

(a)District.(b)Taluk.(c)Village.(d)Survey number and sub-division number.(e)Local name of the land, if any.(f)Extent.(g)Classification, wet or dry.

3. Nature of interest held by the applicant in the land referred to above.

4. Details of corrections to be made or particulars to be included in the draft record.

5. Details of the documents relied on by the applicant and sent along with the application.

Signature of the applicant.Form V[See rule 10 of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Rules, 1969]Form of Application under section 4(2) or section 5(2) of the Tamil Nadu Agricultural Lands Record of Tenancy Rights Act, 1969

1. Name and address of the applicant.

2. Particulars of land in which he is interested.

(a)District.(b)Taluk.(c)Village.(d)Survey Number and sub-division number.(e)Local name of the land, if any.(f)Extent.(g)Classification, wet or dry.

3. [(a) Nature of interest held by the applicant in the land referred to above.] [Substituted by GO. Ms. No. 2759, Revenue, dated the 15th December 1979.]

(b)Name and address of other person shaving interest in the land.

4. Details of particulars to be included or modification of entries to be made in the approved record of tenancy rights.

5. Circumstances under which the inclusion or modification is required.

6. Details of the documents relied on by the applicant and sent along with the application.

7. [(a) Extent of lands held in the capacity of owner, intermediary and tenant by,-] [Added by G.O Ms. No. 1422, Revenue, dated the 16th August 1982.]

(1)	(2)	(3)	(4)	(5)	
i.	Applicant	of the applicant	Taluk and Village	Survey number and sub-divisional number	Extent A.O.
ii.	Spouse				
iii.	Minor Sons				
iv.	Unmarried daughters				

(b)Extent out of (a) already registered under this Act.